



POLICY AND PROCEDURE

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SatCen is in constant need of goods and services to function optimally and maintain an effective organisation.

WHAT IS PROCUREMENT?

Procurement is a structured procedure designed to consult the market for the purchase of these goods and services. A procurement procedure leads to the conclusion of a public contract.

The purpose of a procurement procedure is threefold:

- To guarantee the widest possible participation of economic operators;
- To ensure the transparency of operations; and
- To obtain the desired quality of services, supplies and works at the best possible price.

Offers submitted in the context of a procurement procedure are called “tenders”. An economic operator who has submitted a tender is referred to as a “tenderer”.

PROCUREMENT RULES APPLICABLE TO SATCEN

SatCen procurement procedures are governed by the [Satcen Procurement Manual](#).

The procurement procedures under EU-funded programmes (e.g., Copernicus) comply with the Financial Regulation applicable to the general budget of the Union (Regulation (EU, EURATOM) No 2018/1046 of the European Parliament and of the Council). the Regulation establishing the Copernicus Programme (Regulation (EU)

the EU Procurement Directive (Directive 2014/24/EU of the European Parliament and of the Council).

GUIDELINE FOR TENDERERS

Please consult the Guidelines for Tenderers, intended to help tenderers prepare their offers in response to an invitation to tender issued by the SatCen and to provide guidance on what to expect during the procurement process and as a result thereof.

CONDITIONS FOR TENDERING

ELIGIBILITY TO TENDER: EXCLUSION CRITERIA

Candidates or tenderers shall be excluded from participation in procurement procedures if they are in any of the situations listed in articles 136 and 141 of Regulation (EU, Euratom) No 2018/1046 on the financial rules applicable to the general budget of the Union, as provided in Article 4.5.2 of the SatCen Procurement Manual.

CAPACITY TO PERFORM THE CONTRACT: SELECTION CRITERIA

Tenderers shall have overall capabilities (technical, professional, economic, financial, legal) to perform the contract. If one of the selection criteria listed in the procurement documents is not met, their tender may not be further evaluated.

EVALUATION OF TENDERS

Once the tenderer has demonstrated the appropriate capacity to perform the contract on the grounds of the Selection Criteria, the offer will be assessed on the basis of Award Criteria, which serve to identify the most economically advantageous tender.

HOW TO PARTICIPATE?

SatCen calls for tenders for the supply of goods, services and works are advertised here on the SatCen website and, for high-value contracts exceeding the thresholds set forth in Article 4.4.1 of the SatCen Procurement Manual or, when applicable, Article 4 of [EU Directive 2014/24/EU](#), on the e-tendering platform (<https://etendering.ted.europa.eu>), once mandatory publication has taken place in the Official Journal of the European Union (<http://ted.europa.eu>).

If you wish to participate in current calls for tender by SatCen, please go to the page on [Ongoing calls for tenders](#) or, as the case may be, on the e-tendering platform (<https://etendering.ted.europa.eu>).

SatCen also regularly organises negotiated procurement procedures for low-value contracts. These procedures are advertised on the [Low- and middle-value contracts](#) section of our website. We invite you to periodically check this page for updates and any relevant documentation. SatCen's [Completed calls for tenders](#) are also available for consultation.

CONTACTING SATCEN'S LEGAL SERVICES

If you require further information on calls for tenders or related matters, please contact us at:

European Union Satellite Centre

Legal Services – Procurement Officer

Apartado de Correos 511

28850 Torrejón de Ardoz. Madrid. Spain

E-mail: procurement.satcen@satcen.europa.eu

DATA PROTECTION

Any personal data submitted in the framework of the procurement procedure and/or subsequently included in the Contract shall be processed pursuant to Regulation (EU)

Union institutions, bodies, offices and agencies and on the free movement of such data. It shall be processed solely for the purposes of the performance, management and follow-up of the Procurement Procedure and/or subsequent Contract by the Data Controller without prejudice to possible transmission to the bodies charged with a monitoring or inspection task in conformity with Community law. The Data Subject shall have the right of access to his personal data and the right to rectify any such data that is inaccurate or incomplete. Should the Data Subject have any queries concerning the processing of his personal data, he shall address himself to the Data Controller. The Data Subject shall have right of recourse at any time to the [European Data Protection Supervisor](#).

The complete Privacy Statement applicable to the Procurement Procedures and Contract Management can be consulted [here](#).

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